

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jose S. Franco
(Covering for Honorable Jeffrey B. El-Hajj)**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: September 15, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, you must call (408) 808-6856 before 4:00 P.M.

You must also contact the other side before 4:00 P.M. to inform them that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

9:00 Line 6	26CV489192	Bank of America, N.A. v. Jimmy Lieu	Motion for Judgment on the Pleadings Plaintiff's motion for judgment on the pleadings was filed on August 14, 2026, and was accompanied by a declaration, memorandum of points and authorities, request for judicial notice and proposed orders. Proof of service for the motion has not been filed. Plaintiff to appear to address the lack of proof of service.
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9:00 Line 7	26CV501048	GES Properties, LLC v. Fairview Restoration, Inc.	Petition for Order Releasing Property from Claim of Mechanics Lien Petitioner's verified petition for release of property from mechanics lien was filed on August 7, 2026, and a proof of service was filed on August 21, 2026. No opposition was filed by Respondent. Notice is proper (Civ. Code, §§ 8108, subd. (c); 8486, subd. (b)), and the petition is deemed unopposed. A mechanics lien claimant must commence an action to enforce a mechanics lien within 90 days after the claim of lien is recorded. The claim of lien "expires and is unenforceable" if no action is commenced within that time. (Civ. Code, § 8460, subd. (a).) A property owner or other entity with interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant does not timely commence an action to enforce the lien. (Civ. Code, § 8480, subd. (a).) The petition must be verified and must allege "all of the following: (a) The date of recordation of the claim of lien. A certified copy of the claim of lien shall be attached to the petition.; (b) The county in which the claim of lien is recorded.; (c) The book and page or series number of the place in the official records where the claim of lien is recorded.; (d) The legal description of the property subject to the claim of lien.; (e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.; (f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.; (g) Whether an action to enforce the lien is pending.; (h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien." (Civ. Code, § 8484.)
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